

12. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

This matter is continued by the Court to March 23, 2026. The demurrer filed by Elisabeth Masoudi is advanced from May 11 to March 23, 2026. Opposition and reply are due per code.

Defendants Simona Zakheim and Hyden Zakheim shall give notice of the new hearing dates to all parties.

13. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE:**
KHRISTIAN JOY BUISON APPLICATION
FILED BY:

TENTATIVE RULING:

Plaintiff Prodigy Management, LLC ("Plaintiff") filed an Application for Order for Issuance of Writ of Attachment after Hearing on September 12, 2025 (the "Application for Writ of Attachment"). The Application for Writ of Attachment was initially set for hearing on January 26, 2026. The application was subsequently continued to February 23, 2026. No opposition has been filed.

Background

Plaintiff filed its Complaint on June 5, 2025 alleging that Khristain Joy Buison and Buison Enterprise Inc. failed to pay certain amounts due and owing in relation to the purchase of a pizza restaurant. The Complaint includes claims for breach of contract, common counts and fraud.

Analysis

First, the application is procedurally defective. The Application for Writ of Attachment paper (AT-105) was accompanied by a "NOTICE OF APPLICATION FOR WRIT OF POSSESSION AND HEARING" (CD-110). The property sought to be attached is certain real property located in Brentwood, California. The proper notice for an application for a writ of attachment must given using form AT-115. For this reason alone, the Court would deny the application.

Second, no supporting declaration other than the Application for Writ of Attachment supports the application. The Application for Writ of Attachment is signed under penalty of perjury and contains some information about the nature of the alleged obligation and the damages figures, including a short attachment ("ATTACHMENT TO AT-105 SECTION 7"). However, this is woefully deficient. There is very little information given regarding the breach of the subject contract and calculation of the damages. No exhibits are attached, such as the described promissory note. Most importantly, however, what is stated is only attested to by the attorney. There is no foundation that the attorney has personal knowledge of the underlying transaction and breach.

Disposition

The Court finds and orders as follows: